

8.	22CV0137	SCOTT NEFF vs. PAMELA ROSEN et al
MOTION TO ENFORCE SETTLEMENT		

This is a motion to enforce a Settlement Agreement in this partition action. The parties have sold the shared property and the funds are being held in escrow pending resolution of this motion. Plaintiff asks the Court to enforce the Settlement Agreement and order an equal split of the funds resulting from the sale.

Defendant argues that she has the right to offset the 50/50 split of funds provided for in the Settlement Agreement with additional claims for costs, such as the value of certain personal property, an unanticipated mortgage loan balance and overdue mortgage loan payments from the time of the Settlement Agreement to the time of the sale, any foreclosure fees resulting from overdue mortgage payments, any amounts left in escrow, refunds due for overpayments, and outstanding utility bills.

The first, un-numbered paragraph of the Settlement Agreement provides:

In consideration of the terms, covenants, conditions and releases of this Agreement, the Parties hereto agree as follows:

- a. The parties shall proceed with the sale of the subject property in accordance with the terms set forth herein.
- b. Proceeds from the sale of the subject property shall be divided equally between the parties, after deducting all sale-related expenses.
- c. The Parties shall reasonably cooperate to ensure completion of the settlement.

Paragraph 4 of the Settlement Agreement states that "The parties agree that this Agreement may be enforced by a court of competent jurisdiction, upon ex parte motion, as a judgment pursuant to Code of Civil Procedure Section 664.6."

The Settlement Agreement appears to have been executed by both parties on June 30, 2025.

At the hearing on March 6, 2026 the court ordered a full accounting of the proceeds and expenses from the sale to be equally shared prior to the final distribution. Full accounting was to be filed within 30 days of that court date. No accounting has been received.

TENTATIVE RULING #8: APPEARANCES REQUIRED FRIDAY, JUNE 5, 2026, AT 8:30 AM IN DEPARTMENT NINE.

NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY TELEPHONE OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; EL DORADO COUNTY LOCAL RULE 8.05.07. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.

June 5, 2026
Dept. 9
Tentative Rulings

LONG CAUSE HEARINGS MUST BE REQUESTED BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED AND THE PARTIES ARE TO PROVIDE THE COURT WITH THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. LONG CAUSE ORAL ARGUMENT REQUESTS WILL BE SET FOR HEARING ON ONE OF THE THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. THE COURT WILL ADVISE THE PARTIES OF THE LONG CAUSE HEARING DATE AND TIME BY 5:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. PARTIES MAY PERSONALLY APPEAR AT THE HEARING.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).